

Bihar Police Driver Cadre Rules, 2017

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State of Bihar - Act

Bihar Police Driver Cadre Rules, 2017

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Bihar Police Driver Cadre Rules, 2017

Rule BIHAR-POLICE-DRIVER-CADRE-RULES-2017 of 2017

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Bihar Police Driver Cadre Rules, 2017

Published vide Notification No-8/mis.-10-74/2017-7655/ H.P, dated 20.9.2017

No-8/mis.-10-74/2017-7655/ H.P. - In exercise of powers conferred under the proviso to Article 309 of the Constitution of India read with section 55 and section 97 of Bihar Police Act, 2007, the Governor of Bihar is hereby pleased to make the following Rules to regulate the recruitment and service conditions of Bihar Police Driver Cadre :-

1.

Short title, extent and commencement.

(1)

The Rules shall be called Bihar Police Driver Cadre Rules, 2017.

(2)

It shall extend to whole state of Bihar.

(3)

It shall come into force with immediate effect.

2.

Definition.

- In the Rules, unless the context otherwise requires-

(a)

"Board" means The Central Selection Board (Constable Recruitment);

(b)

"Cadre Controlling Authority" means The Director General of Police, Bihar;

(c)

"Appointing Authority" means Senior Superintendent of Police/ Superintendent of Police/Commandant/Officers of equivalent rank.

(d)

"Cadre" means Bihar Police Driver Cadre.

3.

Constitution of Cadre.

- The following posts shall be in this Cadre :-

(i)

Inspector of Police (Transport);

(ii)

Sub-Inspector of Police (Transport);

(iii)

Assistant Sub Inspector of Police (Transport);

(iv)

Havildar Driver;

(v)

Driver Constable.

4.

Strength of Cadre.

- The strength of this cadre shall be according to the present strength, but, the cadre-strength shall be deemed to be revised due to creation or abolition of posts by the State Government as per requirement from time to time accordingly.

All the personnel of this cadre will wear uniform, but they will not be absorbed in general police cadres. All the personnel of Reserve Sub-Inspector (Transport), Havildar Driver and Driver Constable already working before come in to force of these Rules shall automatically be deemed to be the member of this cadre. The basic post of appointment in this cadre shall only be the post of Driver Constable. Apart from Driver Constables and Havildar Drivers, Assistant Sub Inspector of Police (Transport) will also perform the work of motor driving.

5.

Recruitment eligibility in the cadre.

(1)

In July, the Director General of Police, Bihar will get calculated the number of reservation category-wise vacant posts of Driver Constables to be filled up by direct recruitment.

(2)

The selection of candidates for the appointment to the posts of Driver Constables to be filled up by direct recruitment shall be made by the Central Selection Board (Constable Recruitment) through separate/ Combined Competitive Examination. For the appointment to post of Driver Constables Combined Examination may be held jointly with the examination to be held for the appointment of Constables. A requisition shall be sent to the Central Selection Board (Constable Recruitment) in the prescribed proforma, in which information regarding number of vacant posts and category-wise reservation will also be mentioned. The Central Selection Board (Constable Recruitment) shall set question papers, conduct examinations, appoint examiners to examine the answer-sheets and conduct physical eligibility test and eligibility test of motor vehicle driving and shall send the recommended list of successful candidates.

(3)

The Board shall advertise the number of vacancies in widely circulated news papers and through website as per requisition received from the Director General of Police, Bihar. The candidates shall abide by the directions and conditions given in the advertisements. Examination fees shall be charged from the candidates, which may be fixed by the Board. The candidates shall submit their application forms in the prescribed proforma online through the website as per the terms and conditions published by the Board in the advertisement. In case of Combined Examination candidates fulfilling the determined qualifications will have to give their preference for the selection of posts.

(4)

The Board shall hold Written Competitive Examination for all the candidates in the first stage. The paper of written examination shall be based on multiple choice questions. There will be one paper of 100 questions of 100 marks and the examination period shall be of two hours. One mark will be given for each correct answer. Candidates securing less than 30 marks in this paper shall be declared unsuccessful to appear for physical eligibility test. In the said paper, questions related to the General Knowledge and Current issues will be asked. 05 times successful candidates to existing vacancies shall be selected reservation category-wise, on the basis of marks obtained in the written examination. Answer-sheets shall be in two copies, in which one copy shall be kept as reserve in the Board for one year after declaration of result but if any case is under consideration in the court related to answer sheet of the examination will be kept as reserve till the disposal of the case. In case of unavailability of sufficient number of eligible candidates for the physical eligibility test, the Board may reduce the above mentioned proportion suitably.

(5)

Required Physical Eligibility Tests of the selected candidates on the basis of written exam held in First Phase will be taken by the Board in which it will be compulsory to qualify only. Determined measurements and other required tests in Physical Eligibility Tests, transparent procedure based on electronic and computerized methods based on modern technology will be adopted. Videography of the entire procedure will also be made. The Board shall inform all the candidates regarding their success and failure provisionally in PET everyday and the unsuccessful candidates shall be required to put their signatures on the Master-Chart. Any candidate, dissatisfied with the result of PET, shall place his objections before the Board within 03 days. The Board shall, after hearing the representations related to the objections, dispose of the same on the date of receipt of the objections.

(6)

The successful candidates in the physical eligibility test shall be given an opportunity to appear in the eligibility test of motor driving as, per the provisions prescribed in this Rules.

(7)

Appointment to the post of Driver Constable will be made by Senior Superintendent of Police/Superintendent of Police/Commandant/Officers of equivalent rank on the basis of list of recommendation received from the Board.

6.

Test of Qualification .

(1)

Physical Efficiency Test .- Following tests will be in it. These will be of qualifying nature and no marks will be given in these tests.

(a)

. Run - The prescribed eligibility for the candidates is as follows :-

Run -

Prescribed Eligibility

For males of all Category

One mile (1.6 K.M.) Maximum in seven minutes.

For females of all Category

One K.M. Maximum in seven minutes.

The candidates taking more than determined time, shall be declared unsuccessful.

(b)

Height and Chest - It will be compulsory for the candidates to have the following minimum height and chest eligibility :-

Category

Height Minimum

Chest

Minimum Without expansion

Minimum With expansion

For male candidates of unreserved, Backward class and Extremely Backward class

165 cm

81 cm

86 cm

For male candidates of Scheduled Castes/

Scheduled Tribes

162 cm

79 cm

84 cm

For Gorkha of Indian race, only in BMP 1 (Gorkha Battalion)

160 cm

79 cm

84 cm

For female candidates

153 cm

Not Applicable

Not Applicable

Chest of female candidates will not be measured. Minimum difference in the measurement after expansion of chest must be 5 cm.

(c)

The candidates must pass the following tests in Physical Eligibility Test -

Category

Test/Programme

Determined Eligibility

For male candidates

High Jump

Minimum 3 feet 6 inch

Long Jump

Minimum 10(ten) feet

Shot Put throw (16 lbs)

Minimum 14 feet

Category

Test/Programme

Determined Eligibility

For female candidates

High Jump

Minimum 2 feet 6 inch

Long Jump

Minimum 7 feet

Shot Put throw (12 lbs)

Minimum 8 feet

For every test/programme , only three chances shall be given.

(d)

Minimum 48 Kg weight of female candidates is essential.

Candidates not fulfilling the minimum determined criterion in above mentioned events e.g. High Jump, Long Jump and Shot Put throw shall be declared unsuccessful.

(2)

Eligibility test of motor driving .-The successful candidates in determined physical eligibility test shall be given an opportunity to appear in the eligibility test of motor driving. Maximum marks determined of this test will be 100. On the basis of performances of the candidates marks will be given to them in following manners :-

(i)

There will be a testing track for the test as per the drawing given below in which small vehicle (Jeep and Car) will have to be entered through the route AH and BG in reverse gear and after changing the direction of the vehicle in rectangular track vehicle has to be taken out through the BG and AH in reverse gear.

(Note :- Candidate shall be declared unfit if any part of the vehicle touches the pole or boundary of the tack.)

A to H + B to G = 8 feet 6 inch

B to C =F to G = 11 feet inch

C to D =E to F =25 feet 6 inch

D to E = C to F =31 feet

A to B =H to G =21 feet

(ii)

Marks will be determined for driving Jeep and Car in the above testing track in the following manner :-

(a)

Maximum 20 marks will be for test of efficiency of Jeep driving, which will be given in following manner :-

Time

Gear Change

Marks

Up to 1 minute

3 gear

20

Up to 1 minute

5 gear

16

More than 1 minute but up to 2 minute

5 gear

12

More than 2 minute but up to 3 minute

5 gear

8

(b)

Maximum 20 marks will be for test of efficiency of Car driving, which will be given in following manner :-

Time

Gear

Change Marks

Up to 1 minute

3 gear

20

Up to 1 minute

5 gear

16

More than 1 minute but up to 2 minute

5 gear

12

More than 2 minute but up to 3 minute

5 gear

8

(c)

Maximum marks will be 20 (twenty) for test of efficiency of Bus/Truck driving (to be held in open field), which will be

given in following manner :-

On driving the vehicle changing all the gears without sound-08 Marks.

Making shape of 8 by driving vehicle forward - 04 Marks.

Making shape of 8 by driving vehicle in reverse gear- 08 Marks.

(iii)

For test of Knowledge of motor vehicle of candidates, from the list of questions prepared by the committee of the board, related to traffic signs and signals under the Motor Vehicle Acts and other relevant rules, 20 questions will be asked for which maximum 20 marks may be given.

(iv)

Viva-voce test of the successful candidates relating to General Knowledge of the make and maintenance of different vehicles, their parts and lubricating etc. and mechanical and technical defects expected in the vehicles will be made for which total 20 (twenty) marks may be determined.

Candidates who do not get minimum 06 marks in tests mentioned in (ii)(a), (ii)(b), (ii)(c), (iii) and (iv) shall be declared unfit.

7.

Preparation of merit list.

(1)

Reservation category-wise merit list of successful candidates in all tests will be prepared according to vacancies on the basis of marks obtained in efficiency test of motor driving.

(2)

In case of holding the Combined Competitive Examination separate merit list of successful candidates for the posts will be prepared on the basis of preference indicated by the candidates.

(3)

If two or more than two candidates secure equal marks in the efficiency test relating to motor driving, their places in the merit list shall be determined on the basis of their date of birth. This is to say that candidate senior in age shall remain above in order of merit. In case of similar date of birth of two or more than two candidates, their Place shall be determined on the basis of their educational qualifications. It means the candidate having higher educational qualifications, shall remain above in order of merit. After that also, if more than one candidate are on same footage their inter-se ranks shall be determined on the basis of marks obtained in the qualifying examination. It means candidates having more marks will remain above in merit order. After that if the seniority of candidates is not determined even after above provisions it will be determined on the basis of English alphabet of their names as mentioned in their certificate of Tenth Board.

(4)

The minimum qualifying marks for the candidates of Scheduled Castes and Scheduled Tribes shall be 33.5%, for the candidates of Backward class and Extremely Backward class 35% and for the candidates of General category 40% for the final merit list.

(5)

Board shall prepare a list of candidates on the basis of the merit in descending order and shall recommend the names the candidates reservation category-wise in descending order of the marks according to the requisition received from the Director General of Police.

(6)

Board shall publish Supplementary lists will be published up to 06 months on the request of Director General of Police, Bihar to appoint to the vacant posts under the advertisement occurring due to non-joining of candidates. 06 months period will be counted from the date of publication of merit list.

8.

Medical Test, character and antecedent verification.

(1)

Before the appointment to the post of Driver Constable, the Appointing Authority will get Medical Test as per form no-103 of the successful candidates, and their character and antecedent's verification as per the form no-101 of the Bihar Police Manual 1978 will made by the Appointing Authority. On adverse report or/and in case of concealment of facts by the candidates, concerned candidates shall be declared unfit for appointment.

(2)

According to the provisions made in the Bihar Police Manual Rule 658 (iv), candidates must be free from disease, constitutional affliction or physical infirmity due to which he is or may be unfit for duty.

Note-1:-All the selected candidates will get to be medically test before the appointment. Eye sight, colour blindness, hearing power, stammering, flat-foot and knocking knee etc. will also be test in the medical test. It will be compulsory to be found the selected candidates medically fit for the appointment.

Note-2:-Due to defect like Stuttering and stammering the candidate will not be eligible for selection.

9.

Educational qualification.

(1)

The minimum educational qualification for the recruitment to the basic post of Driver Constable shall be intermediate (10+2) Pass or equivalent.

(2)

It will be compulsory for the candidate to holder of license of Light Motor Vehicle (LMV)/ Heavy Motor Vehicle (HMV) issued by a competent authority minimum one year before the date of issue of the advertisement.

10.

Age.

- The age-limit of the candidates will be as follows :-

(a)

For candidates of General Category minimum 18 years and maximum 25 years;

(b)

For male candidates of Backward Class Category and Extremely Backward Class Category, minimum 18 years and maximum 27 years;

(c)

For female candidates of Backward Class Category and Extremely Backward Class Category, minimum 18 years and maximum 28 years;

(d)

For male or female candidates of Scheduled Castes/ Scheduled Tribes categories, minimum 18 years and maximum 30 years

11.

Reservation.

- Reservation provision as directed by the State Government, from time to time will be applicable to the appointment and promotion to the posts of Driver Constable.

12.

Training.

(1)

The basic training of Driver Constable shall be of 180 working days. The syllabus of the training shall be determined by D.G. (Training), with the approval of D.G.P., Bihar which will include technical and mechanical training.

(2)

For the promotion from Assistant Sub-Inspector (Transport) to Sub- Inspector (Transport), training shall be of 100 working days. The syllabus for this training shall be determined by D.G. (Training), with the approval of D.G.P., Bihar.

13.

Probation period and Confirmation.

(1)

The newly recruited Driver Constables shall be on probation with effect from the date of appointment. The period of probation shall be of three years, which may be extended for one year on being found service and performance unsatisfactory. This kind of extension may be made maximum once in the service. In case of unsatisfactory service even after the extended period Driver Constable appointed on probation will be terminated from the service.

(2)

On the basis of successful completion of the probation period and passing of the Departmental Examination, the Driver Constable may be confirmed in the service.

14.

Seniority.

- The State inter-se seniority of the Driver Constables shall be determined according to the total marks obtained in eligibility test of motor driving efficiency test conducted by the Board and marks obtained in exams of basic training but before coming into force of these Rules, those personnels who are already in service, their inter-se seniority shall remainaffected and they shall be deemed to be included automatically in this cadre.

15.

Promotion.

(1)

The promotional chain of the confirmed employees in this cadre shall be as per the following :-

(a)

Driver Constable to Havildar Driver;

(b)

Havildar Driver to Assistant Sub-Inspector(Transport);

(c)

From Assistant Sub-Inspector(Transport) to the post of Sub-Inspector (Transport);

(d)

From Sub-Inspector(Transport) to the post of Inspector(Transport);

(2)

The promotion shall be admissible on the basis of seniority cum eligibility criterion which shall be considered as per recommendation of the Departmental Promotion Committee. Secret Character Remark, Performance Report, required Trainings, Departmental Examinations will be included in the suitable eligibility criterion.

16.

Kalawadhi.

- The kalawadhi for promotion in Driver cadre will be as follows:-

(a)

Only those Driver Constables will be promoted to the rank of Havildar Driver whose service period of six years is completed.

(b)

Only those Havildar Driver will be promoted to the rank of Assistant Sub- Inspector of Police (Transport) whose service period of 15 years is completed.

(c)

Only those Assistant Sub-Inspector of Police (Transport) will be promoted to the rank of Sub-Inspector of Police (Transport) who have acquired training of driving of vehicle, maintenance, technical skill and latest rules of traffic etc. and whose service period of 22 years is completed.

(d)

Only those Sub-Inspector of Police (Transport) will be promoted to the rank of Inspector of Police (Transport) whose Service Period of 30 years is completed.

(e)

The promotion may be considered on completion of scale-based Kalawadhi determined by the State Government/ General Administrative Department, from time to time.

17.

Residual Matters.

- Any matter, not covered by the Rules or Order/Orders issued there under shall be governed by the provisions of the Bihar Service Code/Rules /Resolutions/Manual(s) which applicable to the equivalent Posts in the State Government.

18.

Explanation.

- If any doubt arises regarding any provision of the Rules, the interpretation made by the Home Department (Police Branch) related there to after consultation with the Law Department, shall be final.

19.

Repeal and Savings.

(1)

The provisions laid down in relevant Rules and Appendix-88 of Bihar Police Manual, 1978 regarding examination for recruitment and appointment/ posting of the Driver Constables, the orders/circulars /notification/instructions issued earlier in this regard are hereby repealed.

(2)

Not with standing such repeal, above Rules being framed, the decisions taken earlier and the resolution/Rules/orders issued earlier and the actions taken in the light of the same, shall be deemed to be done under the Rules or done under the power conferred under the Rules, as if the Rules were in force on such date on which such thing was done or such action was taken.

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